

MASTER SERVICES AGREEMENT

Effective Date: April 28, 2026

Provider	Cedar Ridge Data Solutions, LLC 1200 Meridian Plaza, Suite 410 Ashton, Columbia 21904
Client	Blue Harbor Merchandising, Inc. 88 Westgate Avenue, Floor 6 Riverton, Franklin 38012
Primary Services	Data operations support, internal dashboard configuration, and monthly performance reporting
Initial Term	Twelve (12) months from the Effective Date, unless terminated earlier under this Agreement
Total Contract Value	USD \$96,000, payable in monthly installments as stated in Section 4

This Master Services Agreement (the "Agreement") is entered into by and between Cedar Ridge Data Solutions, LLC, a limited liability company organized under the laws of the State of Columbia ("Provider"), and Blue Harbor Merchandising, Inc., a corporation organized under the laws of the State of Franklin ("Client"). Provider and Client may be referred to individually as a "Party" and collectively as the "Parties".

1. Scope of Services

1.1 Services. Provider will perform the professional services described in Schedule A and any mutually executed statement of work (each, an "SOW"). The Services may include workflow assessment, data pipeline configuration, reporting dashboard setup, quality checks, documentation, and limited user training.

1.2 Change Requests. Any material change to scope, timing, deliverables, or fees must be documented in a written change order signed by both Parties. Provider has no obligation to perform out-of-scope work until the change order is approved.

1.3 Client Materials. Client will provide timely access to reasonably necessary business requirements, sample data, systems, personnel, and approvals. Provider may rely on the accuracy and completeness of Client Materials unless Provider has actual knowledge that such materials are inaccurate.

2. Term and Project Management

2.1 Term. This Agreement begins on the Effective Date and continues for the Initial Term. After the Initial Term, the Agreement will renew for successive one-month periods unless either Party gives at least thirty (30) days written notice of non-renewal.

2.2 Project Contacts. Each Party will appoint a project contact authorized to coordinate work, approve routine deliverables, and escalate issues. A change in project contact must be communicated by email.

2.3 Meetings and Status Reports. During active implementation, Provider will provide weekly status updates. After implementation, Provider will provide monthly operational summaries unless otherwise stated in an SOW.

3. Deliverables and Acceptance

3.1 Deliverables. Deliverables may include configuration files, dashboard views, data mappings, written recommendations, training materials, and monthly reports. Unless an SOW states otherwise, Provider will deliver materials electronically.

3.2 Review Period. Client will have ten (10) business days after delivery to accept or reject a deliverable in writing. Rejection must identify the specific nonconformity against the applicable SOW. If Client does not respond within the review period, the deliverable will be deemed accepted.

3.3 Correction. Provider will use commercially reasonable efforts to correct properly rejected deliverables. Corrections outside the agreed scope may be treated as a change request.

4. Fees, Invoicing, and Taxes

4.1 Fees. Client will pay Provider eight thousand dollars (USD \$8,000) per month during the Initial Term. The fee includes up to forty (40) service hours per month. Additional approved hours will be billed at USD \$150 per hour.

4.2 Invoices. Provider will invoice monthly in advance. Payment is due within fifteen (15) days after the invoice date. Overdue amounts may accrue interest at one percent (1%) per month or the maximum rate permitted by law, whichever is lower.

4.3 Expenses. Pre-approved travel or third-party expenses will be billed at cost without markup. Provider will provide reasonable documentation for reimbursable expenses.

4.4 Taxes. Fees are exclusive of taxes. Client is responsible for sales, use, value-added, withholding, or similar taxes imposed on the Services, excluding taxes based on Provider income.

5. Confidentiality and Data Handling

5.1 Confidential Information. Confidential Information means non-public information disclosed by either Party that is marked confidential or that a reasonable person would understand to be confidential based on the nature of the information and circumstances of disclosure.

5.2 Use and Protection. The receiving Party will use Confidential Information only to perform or receive Services under this Agreement and will protect it using at least reasonable care. The receiving Party may disclose Confidential Information to employees, contractors, and advisors who need access and are bound by confidentiality obligations.

5.3 Exclusions. Confidential Information does not include information that is publicly available without breach, already known without restriction, independently developed without use of Confidential Information, or lawfully received from a third party.

5.4 Client Data. Provider will process Client Data only as necessary to provide the Services. Provider will not sell Client Data. Provider will maintain reasonable administrative, technical, and physical safeguards appropriate to the nature of the Client Data.

6. Intellectual Property

6.1 Client Property. Client retains all right, title, and interest in Client Data, Client Materials, and pre-existing Client intellectual property.

6.2 Provider Property. Provider retains all right, title, and interest in Provider tools, templates, methods, scripts, know-how, and pre-existing materials, including improvements not uniquely derived from Client Confidential Information.

6.3 Deliverable License. Upon full payment, Provider grants Client a non-exclusive, perpetual, internal-use license to use the deliverables created specifically for Client under an SOW. This license does not transfer ownership of Provider Property.

7. Warranties and Disclaimers

7.1 Performance Warranty. Provider warrants that the Services will be performed in a professional and workmanlike manner by personnel with appropriate skill and experience.

7.2 Remedy. Client must report any warranty claim within thirty (30) days after the affected Service is performed. Provider's sole obligation and Client's sole remedy will be reperformance of the nonconforming Service or, if reperformance is not commercially reasonable, a refund of fees paid for the affected Service.

7.3 Disclaimer. Except as expressly stated in this Agreement, Provider disclaims all warranties, whether express, implied, statutory, or otherwise, including implied warranties of merchantability, fitness for a particular purpose, and non-infringement.

8. Limitation of Liability

8.1 Damages Exclusion. Neither Party will be liable for lost profits, lost revenue, loss of goodwill, business interruption, or indirect, special, incidental, consequential, exemplary, or punitive damages arising out of this Agreement, even if advised of the possibility of such damages.

8.2 Liability Cap. Except for payment obligations, confidentiality obligations, misuse of intellectual property, or indemnification obligations, each Party's total aggregate liability under this Agreement will not exceed the fees paid or payable to Provider under the applicable SOW during the six (6) months before the event giving rise to liability.

9. Indemnification

9.1 Provider Indemnity. Provider will defend Client against third-party claims alleging that a deliverable, as provided by Provider and used within the scope of this Agreement, infringes a United States copyright or trade secret, and will pay damages finally awarded or agreed in settlement.

9.2 Client Indemnity. Client will defend Provider against third-party claims arising from Client Data, Client Materials, Client instructions, or Client's use of the Services in violation of law, and will pay damages finally awarded or agreed in settlement.

9.3 Procedure. The indemnified Party must promptly notify the indemnifying Party of the claim, give reasonable cooperation, and allow the indemnifying Party to control the defense and settlement, provided no settlement may impose non-monetary obligations without consent.

10. Termination

10.1 Termination for Cause. Either Party may terminate this Agreement or any SOW if the other Party materially breaches and fails to cure within thirty (30) days after written notice. Nonpayment may be cured within ten (10) days after notice.

10.2 Effect of Termination. Upon termination, Client will pay all undisputed fees for Services performed and approved expenses incurred through the effective termination date. Sections intended by their nature to survive will survive termination.

10.3 Transition Assistance. At Client's request, Provider will provide reasonable transition assistance for up to thirty (30) days at Provider's then-current rates, subject to payment of undisputed outstanding invoices.

11. Compliance and Independent Contractor Status

11.1 Compliance. Each Party will comply with laws applicable to its performance under this Agreement. Client is responsible for determining whether the Services satisfy Client's industry-specific legal or regulatory obligations.

11.2 Independent Contractor. Provider is an independent contractor and not an employee, agent, partner, or joint venturer of Client. Provider controls the manner and means of performing the Services.

11.3 No Solicitation. During the term and for twelve (12) months after termination, neither Party will knowingly solicit for employment the other Party's personnel materially involved in the Services, except through general solicitations not targeted at such personnel.

12. General Terms

12.1 Notices. Formal notices must be in writing and delivered by personal delivery, nationally recognized courier, certified mail, or email with confirmation of receipt to the addresses listed above or to any updated notice address provided by a Party.

12.2 Assignment. Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or in connection with a merger, reorganization, or sale of substantially all assets, provided the assignee assumes the assigning Party's obligations.

12.3 Governing Law. This Agreement is governed by the laws of the State of Columbia, without regard to conflict-of-law rules. The Parties consent to exclusive jurisdiction and venue in the state or federal courts located in Ashton County, Columbia.

12.4 Entire Agreement. This Agreement, together with all SOWs and schedules, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior or contemporaneous understandings.

12.5 Counterparts and Electronic Signatures. This Agreement may be executed in counterparts and by electronic signature. Each counterpart is deemed an original, and all counterparts together constitute one instrument.

Schedule A - Statement of Work

1. Project Objective: Provider will configure a lightweight data operations support workflow for Client's internal retail reporting team, focused on improved visibility into weekly product movement, inventory exceptions, and operational follow-up.

2. Included Services: Requirements review, data mapping review, dashboard configuration, exception reporting setup, quality control checklist, two training sessions, and monthly reporting support.

3. Exclusions: The Services do not include custom enterprise resource planning development, payment processing, regulated financial reporting, legal compliance advice, or production hosting unless expressly added by change order.

4. Milestones: Kickoff within five (5) business days after the Effective Date; prototype dashboard within twenty (20) business days; acceptance review within thirty (30) business days; monthly reporting thereafter.

5. Assumptions: Client will provide access to source exports, internal field definitions, and a knowledgeable business contact. Delays caused by missing Client inputs may extend milestone dates.

IN WITNESS WHEREOF, the Parties have executed this Agreement by their duly authorized representatives as of the Effective Date.

CEDAR RIDGE DATA SOLUTIONS, LLC

By: _____

Name: _____

Title: _____

Date: _____

BLUE HARBOR MERCHANDISING, INC.

By: _____

Name: _____

Title: _____

Date: _____